

Contempt Case Against Head Of Civil Rights Body Dismissed

By the United Press

Federal Judge Luther W. Youngdahl threw out of court yesterday the contempt of Congress case against William L. Patterson, executive secretary of the Civil Rights Congress.

Patterson was charged with defying a special House committee investigating lobbying activities after he refused to produce financial records of his organization at two hearings in August, 1950.

The Civil Rights Congress is on the Attorney General's list of subversive organizations.

Youngdahl dismissed the indictment just as Patterson was about to go on trial a second time.

The judge said the indictment was illegal in view of a recent declaration of a special three-judge Federal court that part of the lobbying act is unconstitutional. Patterson's first hearing ended with a hung jury.

It is expected the Government will appeal, perhaps directly to the Supreme Court. The contempt indictment could be revived if the Government succeeded in winning a reversal of yesterday's decision in a higher court. No question of double jeopardy would be involved since Youngdahl acted before the case actually went to trial before a jury.

Sixty spectators, many of whom were unable to jam into the tiny chamber, surrounded Patterson to offer congratulations as he left the courtroom.

Patterson said Youngdahl was compelled by "tremendous pressure to make a decision from the

bench." The pressure, he said, came from "millions of communicants" of Negro Methodist and Baptist churches.